

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Vredenburg	Team: Team # 5	CCRB Case #: 200611747	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 08/28/2006 7:35 PM	Location of Incident: 46th Precinct stationhouse	18 Mo. SOL 2/28/2008	Precinct: 46
Date/Time CV Reported Thu, 08/31/2006 7:17 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/05/2006 4:25 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Vincent Zerafa	18945	926340	046 PCT
2. POM Jaime Pedraza	21301	935479	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Paul McMahon	00000	899574	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Vincent Zerafa	Abuse: Officer Vincent Zerafa strip searched § 87(2)(b)	A . Exonerated
B . POM Vincent Zerafa	Force: Officer Vincent Zerafa used physical force against § 87(2)(b)	B . Exonerated
C . POM Vincent Zerafa	Force: Officer Vincent Zerafa struck § 87(2)(b) with a nightstick.	C . Unsubstantiated
D . POM Jaime Pedraza	Force: Officer Jaime Pedraza used physical force against § 87(2)(b)	D . Exonerated
E . POM Vincent Zerafa	Force: Officer Vincent Zerafa used a chokehold against § 87(2)(b)	E . Unsubstantiated
F . POM Vincent Zerafa	Abuse: Officer Vincent Zerafa did not obtain medical treatment for § 87(2)(b)	F . Unfounded
G . POM Jaime Pedraza	Abuse: Officer Jaime Pedraza did not obtain medical treatment for § 87(2)(b)	G . Unfounded
§ 87(4-b) § 87(2)(g)		

Synopsis

On August 31, 2006, § 87(2)(b) filed this complaint with IAB by phone and it was referred to the CCRB on September 5, 2006. The complaint concerns the following events: on August 28, 2006, at about 4:25 PM, § 87(2)(b) was standing on the corner of Grand Avenue and West 183rd Street in the Bronx, speaking with his friends, § 87(2)(b) and § 87(2)(b). Officer Vincent Zerafa, who was identified by § 87(2)(b) and Officer Jaime Pedraza, who was identified during the investigation, drove up to the group of men and arrested § 87(2)(b). He was driven to the 46th Precinct stationhouse where he was strip searched in a room near the holding cells by Officer Zerafa and Officer Pedraza (allegation A). During the course of the strip search, the officers recovered twenty small bags of marijuana from § 87(2)(b) and accused him of swallowing drugs. Officer Zerafa then pushed § 87(2)(b) against the wall of the room and stuck a nightstick in § 87(2)(b)'s mouth (allegations B and C), causing him to bleed, and Officer Pedraza pushed against § 87(2)(b) and choked his neck (allegations D and E). Following the strip search, § 87(2)(b) requested medical attention from both Officer Zerafa and Officer Pedraza, and neither of them assisted him in obtaining medical treatment (allegations F and G). The strip search was not documented by Officer Zerafa in the command log, his memo book, or the arrest reports (allegation H).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) it is recommended that allegation A be closed, "Exonerated."

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) it is recommended that allegations B and D be closed, "Exonerated."

§ 87(2)(g)

§ 87(2)(g) it is recommended that allegation C be closed, "Unsubstantiated."

§ 87(2)(g)

§ 87(2)(g) it is recommended that allegation E be closed, "Unsubstantiated."

§ 87(2)(g)

§ 87(2)(g) it is recommended that allegations F and G be closed, "Unfounded."

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) a § 87(2)(b) black male who is a § 87(2)(b) for § 87(2)(b) made statements concerning the incident on August 30, 2006 in speaking with Detective Timothy O'Brien and Sergeant Nelson Villafane of IAB Group #54 (encl. 10a-c), to medical personnel in receiving medical treatment on § 87(2)(b) (encl. 11a-b), and in his CCRB interview on August 31, 2006 (encl.12a-f).

§ 87(2)(g)

§ 87(2)(b) stated that on August 31, 2006, at about 7:30 PM, he was standing with two friends on the corner of Grand Avenue and West 183rd Street in the Bronx. He had \$728 in cash which he had obtained from a nearby Western Union. He had just bought a bag of chips and a drink from the bodega on that corner, and he was smoking a cigarette and talking with his two friends. § 87(2)(b) also had thirteen bags of marijuana taped to his boxers. Officer Vincent Zerafa and Officer Jaime Pedraza and a third officer, who the investigation determined was not present, drove an unmarked police vehicle up to where § 87(2)(b) was standing, exited the vehicle, and quickly handcuffed and arrested § 87(2)(b). He was brought back to the 44th Precinct stationhouse and at the front desk, Officer Zerafa and Officer Pedraza took all of the items out of § 87(2)(b)'s pockets and took him to a bathroom adjacent to the holding cells of the stationhouse. Along with Officer Zerafa and Officer Pedraza were three unidentified officers who the investigation determined were not present for the strip search and who § 87(2)(b) could not describe in detail, but stated that they were white males. § 87(2)(b) was told to take off his clothes and in doing

so the thirteen bags of marijuana fell to the floor. Officer Zerafa then told § 87(2)(b) to open his butt cheeks with his hands, but he did not want to do so and he started shifting from side to side in the room. Officer Zerafa pushed § 87(2)(b) against the wall of the room and pushed his face against the wall such that his right forehead hit the wall first. He did not sustain any visible injuries to his forehead. § 87(2)(b) asked if opening his butt cheeks was a new procedure. Officer Zerafa accused § 87(2)(b) of swallowing something and took out his nightstick and pushed it inside of § 87(2)(b)'s mouth with such force that § 87(2)(b) stated his teeth would have been knocked out if he didn't hold his tongue against them. He described the nightstick as being made of metal and about three inches long. § 87(2)(b) started bleeding from his tongue. While Officer Zerafa pushed his nightstick inside of § 87(2)(b)'s mouth, Officer Pedraza and the other unidentified officers were grabbing and choking § 87(2)(b)'s neck with their hands in an attempt to keep him from swallowing items. He could not determine how many of the officers were choking him, as his back was facing the officers. § 87(2)(b) stated that he couldn't breathe for two to three minutes while being choked and felt the officers kneeling him. He estimated that the strip search lasted five minutes. After putting his clothes back on, § 87(2)(b) requested medical attention from Officer Zerafa, but did not receive a response. He was taken to an interrogation room by Officer Zerafa, Officer Pedraza, and one of the unidentified officers. He was asked to discuss the incident, but refused to do so. § 87(2)(b) was then put in a holding cell from which he asked for medical attention from Officer Pedraza as he walked by, but Officer Pedraza never obtained medical treatment from him.

At Bronx Central Booking, the EMS personnel refused to treat § 87(2)(b)'s injuries, stating that in order to receive medical attention he would either have to have diabetes or be near dying. After being released, § 87(2)(b) went to § 87(2)(b) on § 87(2)(b) and received some antibiotics and Motrin for the pain he felt. § 87(2)(b) stated that the EMS personnel at Bronx Central Booking assessed the cuts to his mouth and determined that he did not need medical assistance. The injury to his tongue was the only injury he sustained.

In his CCRB interview, § 87(2)(b) initially stated that he had been waiting to cross the street. § 87(2)(b) initially stated that he could breathe while being choked. § 87(2)(b) later stated that only one of the other officers was involved in choking him and that Officer Pedraza simply stood by the door during the search.

In speaking with Sergeant Villafane and Detective O'Brien after filing the complaint with IAB, § 87(2)(b) informed the officers that he bought the thirteen bags of marijuana several minutes before standing on the corner and being arrested. He estimated that two to three officers besides Officer Zerafa were present for the search.

While receiving medical assistance at § 87(2)(b), § 87(2)(b) stated that an officer pushed a flashlight or a nightstick into his mouth.

Results of Investigation

Civilian Statements

Sergeant Clive Caplan and Lieutenant Panetta of IAB Group #54 spoke with § 87(2)(b) the mother of § 87(2)(b) on August 30, 2006 (encl. 14a-e). She informed the officers that § 87(2)(b) told her he was beaten by officers at the 46th Precinct stationhouse and one of them put a nightstick in his mouth after attempting to put his fingers in his rectum.

Detective Mark E. Dennis of IAB Group #54 spoke with § 87(2)(b) a sister of § 87(2)(b) on August 30, 2006 (encl. 14a-e). She informed Detective Dennis that § 87(2)(b) told her he was coming from a supermarket with bags of groceries in his hands when he was approached by officers who asked him to provide information regarding an investigation concerning the whereabouts of an individual. § 87(2)(b) told the officers he had no pertinent information and the officers then accused him of having drugs in his rectum and wanted to stick their fingers in his rectum. She did not mention the officers pulling down his pants or underwear, but a struggle ensued during which § 87(2)(b) inhibited the officers from putting their hands in his rectum. When brought to the 46th Precinct stationhouse, § 87(2)(b) told § 87(2)(b) that officers beat him in the head with a type of metal pipe and stuck it in his mouth. He told her that he was bleeding from his head, mouth, and sustained bruises to his face. § 87(2)(b) also told her that he was choked during the struggle.

Detective O'Brien spoke with **Doctor** § 87(2)(b) at the § 87(2)(b) on August 30, 2006 (encl. 14a-e). He informed Detective O'Brien that § 87(2)(b) had complained of a swollen tongue and had suffered a small laceration to his right upper lip and to the left side of his tongue. § 87(2)(b) had told Doctor § 87(2)(b) that he suffered the laceration from an officer putting a stick in his mouth. He did not need any stitches.

Officer Statements

Officer Vincent Zerafa of the 46th Precinct was interviewed at the CCRB on December 12, 2006 (encl. 17a-c). He is a § 87(2)(b) white male with black hair and brown eyes who is § 87(2)(b) old. On August 28, 2006, Officer Zerafa worked from 1:00 PM to 12:05 AM and was assigned to special projects with Officer Jaime Pedraza in unmarked § 87(2)(e), § 87(2)(f). In his memo book (encl. 15a-c), Officer Zerafa noted that at 7:30 PM, he made an arrest of § 87(2)(b) § 87(2)(b). At 7:45 PM, Officer Zerafa noted that he was at the 46th Precinct stationhouse and § 87(2)(b) swallowed drugs during the arrest processing. Officer Zerafa completed the medical treatment of prisoner form (encl. 16a) in regards to § 87(2)(b) which indicates that he refused medical treatment after swallowing an unknown quantity of alleged crack cocaine while fighting with the police at the 46th Precinct stationhouse. Lieutenant Paul McMahon signed the form.

On August 28, 2006, at about 7:30 PM, Officer Pedraza stated that he observed § 87(2)(b) receiving an unknown amount of cash for small bags from less than half a block away, approached him with Officer Pedraza, and § 87(2)(b) dropped a bag of marijuana on the ground. Officer Zerafa placed § 87(2)(b) in handcuffs and brought him to the 46th Precinct stationhouse. The buyer at the scene was not arrested.

At 7:45 PM, Officer Zerafa was at the stationhouse with § 87(2)(b) and asked him if he had any more drugs on his person, which he said he did not. He then frisked § 87(2)(b) and in doing so found twenty bags of marijuana on his waistband. Officer Zerafa received authorization to do a strip search from his supervisor, whose name he did not recall, and had § 87(2)(b) stand in a small room adjacent to the holding cells while he stood in the doorway and Officer Zerafa stood nearby. No civilians could see the search and no other officers were present for the search. He had § 87(2)(b) take off each item of clothing. When § 87(2)(b) had only his underwear on, § 87(2)(b) reached down to his crotch area, grabbed a plastic bag that appeared to contain crack cocaine, and swallowed it. Officer Zerafa called for help, grabbed the back of § 87(2)(b)'s neck, and told him, "Stop swallowing the drugs, stop swallowing the drugs." Officer Zerafa grabbed § 87(2)(b) on his neck in order to inhibit him from seriously injuring himself by swallowing the drugs and stated that he did not inhibit him from breathing in any way. Officer Zerafa and Officer Pedraza attempted to place § 87(2)(b) in handcuffs as he was swinging his arms. § 87(2)(b) was brought down to the floor, with his knees touching the floor first and Officer Zerafa and Officer Pedraza grabbed his arms in handcuffing him, which took about ten seconds. § 87(2)(b) did not make contact with any other structures besides the floor and told Officer Zerafa he had swallowed marijuana. § 87(2)(b) was bleeding from his tongue and Officer Zerafa conjectured that he had bit his tongue, though he blamed the bleeding on Officer Zerafa. There were no other visible injuries to § 87(2)(b). § 87(2)(b) declined medical treatment, was brought a bottle of water, and Officer Zerafa took pictures of his face and mouth (encl. 9a-e). Lieutenant Paul McMahon was made aware of the injuries and the refusal of medical attention (encl. 16a). The issue of searching cavities never arose, Officer Zerafa did not put any object in § 87(2)(b)'s mouth, and only he and Officer Pedraza were present for the strip search. At no point did § 87(2)(b) express a desire to receive medical treatment. Officer Zerafa did not know where the strip search was documented, but stated that he did not document the strip search in his memo book.

Officer Jaime Pedraza of the 46th Precinct was interviewed at the CCRB on February 21, 2007 (encl. 18a-b). Officer Pedraza is a § 87(2)(b) Hispanic male who is § 87(2)(b) old. On August 28, 2006, Officer Pedraza worked from 5:30 PM to 2:05 AM with Officer Zerafa and was assigned to Special Projects. Officer Pedraza did not have any memo book entries concerning the incident (encl. 18a-b). The UF-61 (encl. 20a-b) and OLBS report (encl. 19a-c) concerning the arrest of § 87(2)(b) which were reported by Officer Pedraza, all indicate that he was observed exchanging small objects for unknown amount of cash with an individual who was not apprehended. Thirteen bags of marijuana were recovered

from him and he swallowed a quantity of alleged crack cocaine at the 46th Precinct stationhouse. [REDACTED]

§ 87(2)(g)

When § 87(2)(b) was apprehended at East 183rd Street and Grand Avenue, Officer Pedraza decided not to pursue the fleeing buyer because of the fact that § 87(2)(b) is significantly larger than Officer Zerafa. Officer Pedraza stated that during the strip search of § 87(2)(b) Officer Zerafa yelled to him, "He swallowed crack." He did not hear signs of a struggle before that. When he entered the room to assist Officer Zerafa, § 87(2)(b) was against the wall of the room with his face towards the wall and Officer Zerafa had his left on the middle of § 87(2)(b)'s back. Several bags of marijuana were on the floor and § 87(2)(b) attempted to move his hands away from Officer Pedraza, who in five to ten seconds was able to handcuff him. Besides § 87(2)(b)'s arms, Officer Pedraza did not touch any other part of him. There was no further struggle with § 87(2)(b) once he was handcuffed. About forty-five minutes after handcuffing him, Officer Pedraza went to the holding cells with Officer Zerafa because § 87(2)(b) was complaining of having a laceration to his lip. Officer Pedraza did not see any blood, laceration, or injury of any kind to § 87(2)(b) and he did not ask for medical assistance from any officer. The officers took pictures of his mouth and lip, as the other prisoners were stating that § 87(2)(b) was going to sue the officers and become rich. Officer Pedraza did not see any officer put a nightstick in § 87(2)(b)'s mouth or place a hand on his neck. He did not interact with § 87(2)(b) any further.

Medical Documents

§ 87(2)(a) PBH §18(6)

Police Documents

The 46th Precinct command log (encl. 23a) indicates that § 87(2)(b) was arrested by Officer Zerafa was at the stationhouse at about 7:40 PM and he was arrested § 87(2)(b). It does not indicate that § 87(2)(b) was strip searched. Lt. McMahon verified the arrest.

The 46th Precinct tour 3 roll call for August 28, 2006 (encl. 24a-m) indicates that Officer Pedraza and Officer Zerafa were assigned to Special Projects, but it does not indicate the vehicle they used.

The medical treatment of prisoner report (encl. 16a) is signed by Officer Zerafa and Lieutenant McMahon and indicates that § 87(2)(b) refused medical assistance.

The arrest photographs of § 87(2)(b) (encl. 13a) show no visible injuries to § 87(2)(b)'s face. § 87(2)(b)

Civilian CCRB History

§ 87(2)(b) has not filed any other complaints with the CCRB (encl. 6a).

Officer CCRB History

Officer Zerafa has been with the NYPD for six years and has never been the subject of a substantiated allegation (encl. 4a). Officer Pedraza has been with the NYPD for two years and has never been the subject of a substantiated allegation (encl. 5a).

On March 16, 2007, § 87(2)(b) of the NYC Comptroller's Office confirmed that § 87(2)(b) has not filed a notice of claim in regards to the incident.

[illegible]

Officer Identification

Officer Pedraza acknowledged that he was Officer Pedraza's partner and was involved in arresting § 87(2)(b). He acknowledged using physical force to handcuff him during the strip search. § 87(2)(b) stated that he requested medical attention from one of the other officers involved in arresting him and stated that the officer was a light skinned Hispanic male, which describes Officer Pedraza. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Officer Zerafa articulated that he believed § 87(2)(b) may have additional drugs on his person that were concealed by his clothing, and thus he thought a strip search was suitable, given the nature of the charges and § 87(2)(b)'s denial that he had anymore drugs. Officer Zerafa did in fact obtain more drugs during the strip search.

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

Following the strip search, Officer Zerafa documented that § 87(2)(b) refused medical treatment, which was affirmed by Lt. McMahon, and stated that he provided him with a bottle of water and then asked him if desired to be treated for the cuts to his mouth. § 87(2)(g)

Officer Pedraza also stated that § 87(2)(b) did not ask for medical assistance. While § 87(2)(b) stated that he asked for medical attention from Officer Zerafa and Officer Pedraza, he informed Sergeant Villafane and Detective O'Brien that the EMS personnel at Bronx Central Booking determined that he didn't need medical treatment. Moreover, the doctors described the lacerations as small and thus it is possible that § 87(2)(b) didn't request medical treatment at the stationhouse due to the minor character of the injuries.

Allegation A: Officer Vincent Zerafa strip searched § 87(2)(b)

§ 87(2)(b) stated that Officer Zerafa conducted a strip search of him. Officer Zerafa acknowledged doing so § 87(2)(g) NYPD Patrol Guide Procedure 208-05 (encl. 2a-b), which states that civilians should view the search, § 87(2)(g). Officer Zerafa witnessed § 87(2)(b) selling marijuana and recovered marijuana from his waistband in frisking him at the 46th Precinct stationhouse. NYPD Patrol Guide Procedure 208-05 states, "A strip search will be

utilized when the arresting officer reasonably suspects that weapons, contraband, or evidence may be concealed upon the person or in the clothing in such a manner that they may not be discovered by the previous search methods.” § 87(2)(g)

it is recommended that allegation A be closed, “Exonerated.”

Allegation B: Officer Vincent Zerafa used physical force against § 87(2)(b)

Allegation D: Officer Jaime Pedraza used physical force against § 87(2)(b)

§ 87(2)(b) stated that Officer Zerafa and one to two other officers pushed him against a wall of the room in which he was strip searched. § 87(2)(g)

Officer Pedraza stated that when he entered the room § 87(2)(b) was positioned against a wall with Officer Zerafa pressing him with his left hand in that position. Both Officer Pedraza and Officer Zerafa stated that they used physical force in order to handcuff § 87(2)(b) as Officer Zerafa had witnessed him grabbing a bag of drugs and swallowing it. § 87(2)(b) acknowledged that he attempted to move away from the officers. NYPD Patrol Guide Procedure 203-11 (encl. 1a-b) states that officers must use the “minimum force necessary”

§ 87(2)(g)

it is recommended that allegations B and D be closed, “Exonerated.”

Allegation C: Officer Vincent Zerafa struck § 87(2)(b) with a nightstick.

§ 87(2)(b) stated that Officer Zerafa stuck a nightstick in his mouth, which caused a cut to his tongue. Officer Zerafa denied this and Officer Pedraza stated that he did not see Officer Zerafa stick the nightstick in his mouth. § 87(2)(b) § 87(2)(g) stated that Officer Zerafa nearly knocked his teeth out and yet the doctor documented that there was no damage to his teeth. § 87(2)(g)

The pictures taken of § 87(2)(b) following the strip search do not indicate that he suffered a large cut or damage to his mouth, and he had no blood in or around his mouth. § 87(2)(g)

it is recommended that allegation C be closed, “Unsubstantiated.”

Allegation E: Officer Vincent Zerafa used a chokehold against § 87(2)(b)

At one point in his CCRB interview, § 87(2)(b) stated that Officer Zerafa applied pressure on his neck such that it inhibited him from breathing. § 87(2)(g) at another point in his CCRB interview, as he stated that his breathing was not inhibited by the manner in which Officer Zerafa grabbed his neck. Moreover, when § 87(2)(b) said Officer Zerafa prevented him from breathing he stated that this lasted for two to three minutes. Both § 87(2)(b) and Officer Zerafa stated that the reason Officer Zerafa was grabbing his neck was in order to inhibit § 87(2)(b) from swallowing drugs. NYPD Patrol Guide Procedure 203-11 (encl. 1a-b) defines a chokehold as “any pressure to the throat or windpipe, which may prevent or hinder breathing or reduce intake of air.” § 87(2)(g)

it is recommended that allegation E be closed, “Unsubstantiated.”

Allegation F: Officer Vincent Zerafa did not obtain medical treatment for § 87(2)(b)

Allegation G: Officer Jaime Pedraza did not obtain medical treatment for § 87(2)(b)

§ 87(2)(g) stated that he asked both Officer Zerafa and Officer Pedraza for medical attention after the strip search. § 87(2)(g) Officer Zerafa documented that § 87(2)(b) refused medical treatment and Officer Pedraza also stated that § 87(2)(b) did not request medical treatment. The EMT staff at Bronx Central Booking determined that § 87(2)(b) did not need medical attention for the cut to his tongue and the cut to his lip. When he went and obtained medical treatment at § 87(2)(b) on § 87(2)(b), the doctors did not treat the cuts. § 87(2)(g)

§ 87(2)(g) it is recommended that allegations F and G be closed, “Unfounded.”

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: